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23-CIV-01165 ANGIE COLE VS. HAMPTON INN, ET AL.

LINE 2

ANGIE COLE
HAMPTON INN

JASON B. JAVAHERI

DEFENDANT SRI RAM ENTERPRISES, INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Defendant SRI Ram Enterprises, Inc.'s ("SRI") Motion for Summary Judgment ("MSJ"), filed June 11, 2026, is DENIED. (Code Civ. Proc. § 437c.) SRI's alternative Motion for Summary Adjudication ("MSA") is also DENIED.

The Court declines to rule on Defendant SRI's Aug. 20, 2026 Evidentiary Objections, which seek to exclude various statements/opinions in the declarations of Zachary Moore, Joellen Gill, and Robert Rauch (Aug. 10, 2026 Compendium of Evidence, Exhibits 18-20), on grounds that they are immaterial to the disposition of the motion. (Code Civ. Proc. § 437c(q).) As explained below, the Court finds that the evidence raises one or more triable issues that preclude the Court from granting summary judgment or adjudication, even without considering the Moore, Gill, and Rauch declarations.

Background

This negligence/premises liability case arises from Plaintiff Angie Cole's fall from a curb, and injury, at about 9:50 p.m. on May 15, 2020, at a Hampton Inn Hotel located at 300 Gateway Blvd. in South San Francisco. Defendant SRI owns and operates the hotel. Plaintiff alleges that she was walking on an exterior walkway adjoining the hotel parking lot, while holding several items in her hands, and looking straight forward, and did not see/notice a roughly 5-6 inch curb/step-down in front of her. Because she did not see the curb/step-down, she fell as she stepped down the curb, causing injury.

SRI's motion argues that the exterior walk-way, including the curb/step-down, was "open and obvious," because the area was well-lit, and because the curb/step-down was marked with yellow and black coloring that stood out from the remainder of the (white) sidewalk. SRI argues that Plaintiff did not notice the curb because she was carrying several items and was not paying proper attention to her surroundings. SRI argues that because the curb/step-down was open and obvious, Plaintiff's negligence and premises liability claims fail as a matter of law, because Plaintiff's injury was not foreseeable, and because the Plaintiff's own carelessness caused her fall, rather than any negligence on the part of SRI.

Viewing the evidence in a light favorable to Plaintiff, at it must, and drawing all reasonable inferences from the evidence, the Court finds that triable issues of fact exist as to whether the curb/drop-down presented an open and obvious condition/risk of injury, whether SRI provided sufficient warning of the curb/drop-down and whether Defendant could have or should have taken action to prevent the risk of injury, which prevents the Court from adjudicating Plaintiff's claims via summary judgment/adjudication.

Discussion

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. Sect. 437c(c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Sect. 437c(p)(2).) If a defendant meets this burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (*Id.*) “A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof.” (*Id.*; *Pasadena Metro Blue Line Constr. Auth. v. Pac. Bell Tel. Co.* (2006) 140 Cal.App.4th 658, 663.)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass’n* (1993) 15 Cal.App.4th 1205, 1207.) The Court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843-856.)

The elements of a cause of action for negligence are: (1) a duty on the part of defendant toward plaintiff; (2) defendant's breach of that duty; and (3) harm to the plaintiff caused by that breach. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) “As in a general negligence cause of action, a plaintiff bringing an action for premises liability based on a negligence theory must plead and prove that the defendant breached a duty of care owed to the plaintiff that proximately caused injury and damages.” (*Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 37; CACI 1000 [“Premises Liability—Essential Factual Elements.”]) Premises liability “is grounded in the possession of the premises and the attendant right to control and manage the premises.” But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. (*Id.*)

“Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm.” (*Id.*, citing *Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) “But an accident on a landowner’s property does not necessarily create premises liability.” (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 145.) “Whether a duty should be imposed on a defendant depends on a variety of policy considerations, known as the *Rowland* factors.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 446.) “The ‘most important’ of these considerations or factors is ‘the foreseeability of injury to another.’” (*Nicoletti*, 97 Cal.App.5th at 145.) Accordingly, a “court’s task—in determining ‘duty’—is not to decide whether a *particular* plaintiff’s injury was reasonably foreseeable in light of a *particular* defendant’s conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party.” (*Id.*) “Foreseeability, when analyzed to determine the existence or scope of a duty, is a question of law to be decided by the court.” (*Id.*)

Although the factors to be weighed in determining the scope of a defendant's duty will vary in each case, the two primary considerations are the foreseeability of the harm and the burden on the defendant of protecting against the harm. (*Lawrence v. La Jolla Beach & Tennis Club, Inc.* (2014) 231 Cal.App.4th 11, 23-24.) In cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. (*Id.*) On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required. (*Id.*)

"A harm is typically not foreseeable if the 'dangerous condition is open and obvious.'" (*Nicoletti*, 97 Cal.App.5th at 145.) "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (*Jacobs*, 14 Cal.App.5th at 447) "In that situation, owners and possessors of land are entitled to assume others will 'perceive the obvious' and take action to avoid the dangerous condition." (*Nicoletti*, 97 Cal. App. 5th at 145 [quoting *Jacobs*, at p. 447].) Where reasonable minds could differ on whether a condition is open and obvious or where the evidence does not conclusively establish the open and obvious nature of the condition, a triable issue of material fact exists precluding summary judgment. (*Kasparian v. AvalonBay Communities* (2007) *Inc.*, 156 Cal.App.4th 11, 25; *Fernquist v. San Francisco Presbytery*, 152 Cal. App. 2d 405, 411, 313 P.2d 192, 195 (1957) ("Normally, the question whether a danger is obvious and should have been appreciated is one of fact, not of law.").)

The issues of breach of duty and causation "are ordinarily questions of fact for the jury's determination." (*Lawrence v. La Jolla Beach & Tennis Club, Inc.*, *supra*, 231 Cal.App.4th at 32; *Parker v. City and County of San Francisco* (1958) 158 Ca2d 597, 604 ["Generally, the issue of negligence is a question for the jury."]; *Garcia v. Hoffman* (1963) 212 Cal.App. 2d 530, 542 ["Even where the facts are undisputed, if reasonable minds might draw different conclusions upon the question of negligence, the question is one of fact for the jury."]; *Raven H. v. Gamette* (2007) 157 Cal.App.4th 1017, 1029–1030 ("Whether a defendant's conduct actually caused an injury is a question of fact ... that is ordinarily for the jury").

SRI offers evidence that, to its knowledge, no prior injury/fall had occurred at the location where Plaintiff fell. (June 11, 2026 Patel Decl., ¶ 6.) SRI also points to evidence indicating that although Plaintiff's incident occurred at night, visibility/lighting was good, and the curb/step-down was prominently marked with yellow and black coloring that distinguished it from the remainder of the white cement, thereby drawing attention to the curb. SRI argues that these yellow and black markings created an open and obvious condition (step-down) that Plaintiff, had she been paying better attention, would have seen. Similarly, SRI's expert, Carl Beels, opines that the curb/drop-down presented an open and obvious condition. His declaration states, in part:

16. Notable, effective, and intuitively obvious visual cues included: a) the retaining curb adjacent to the landscape at the back of the curb ramp (the left side of the curb ramp from Plaintiff's approach perspective); b) the bright yellow truncated domes, aka detectable warnings built into the ramp; and c) a retroreflective yellow/black caution tape, approximately 20 inches long and 2 inches wide, pasted onto the concrete surface immediately adjacent to the subject step (see Figure 13). Both the bright yellow detectable warnings and the yellow/black caution tape will naturally and foreseeably catch an alert and attentive person's eye upon approach. This sort of safety marking is widely accepted and routinely used for the precise purpose of catching a person's attention as a cautionary alert to look at the ground for some sort of change such as a step down, as in the subject instance. Because of the open and obvious nature of the subject step, in particular

being clearly marked and highlighted with the yellow/black caution tape, there was no need for any structural changes or additions such as handrails or guardrails.

(Beels Decl., ¶ 16; see also id., ¶¶ 17-18 [opining that the lighting was adequate.])

SRI has good arguments on this point, but arguably, reasonable minds could differ. Attached to the Beels declaration are photographs, taken after-the-fact, which show Plaintiff's viewpoint as she approached the curb/drop-off on the date of the incident. (June 11, 2026 Decl. of Carl Beels.) Plaintiff testified that just prior to her fall, as she was looking straight ahead, she noticed what appeared to be a ramp/incline ahead of her. (June 11, 2026 Finch Decl., Ex. 3 [Plaintiff's Tr. at 72; 180; 207.]) She believed that the yellow marking on the ground indicated an upcoming ramp/incline, but that she did not expect a sudden drop. (Id.)

Arguably, the Beels photographs, combined with other evidence (including Plaintiff's testimony), supports an inference that the curb/drop-down was not "open and obvious" at the time of the incident. Arguably, from Plaintiff's perspective, the drop-down was not obvious. (See photographs attached to the Beels declaration.) The yellow coloring on the ground immediately past the drop-down was clearly an indication of *something*—which one could presume was the upcoming incline/ramp. There is no evidence that Plaintiff was looking at her phone or otherwise looking elsewhere. Plaintiff testified that she was looking straight ahead, as pedestrians often do. Whereas the curb/drop-down appears to be quite apparent from a side-view (see Plaintiff's Aug. 10, 2026 Compendium, Ex. 3 [showing a daytime, side-view of the curb/drop-down]), it (arguably) was not nearly as apparent from Plaintiff's perspective. (See photographs to June 11, 2026 Beels Decl.) (Compare with the June 11, 2026 Patel Decl., Ex. 1 [photo from the opposite direction, in which the step-up appears more obvious/apparent]). Arguably, a reasonable fact finder could conclude that the drop-down was not open and obvious to Plaintiff, that the yellow and black coloring did not provide sufficient warning of the drop down, and that Plaintiff reasonably believed that the yellow (and black) coloring indicated an upcoming incline rather than a drop-down. Accordingly, the Court cannot conclude, as a matter of law, that the curb presented an "open and obvious" risk/condition that bars Plaintiff's claims.

Further, and independently, a triable issue appears to exist as to whether SRI could or should have replaced the curb/drop-down with a gradual decline, which presumably would have lessened or eliminated the fall risk. SRI's expert (Carl Beels) does not address the curb design, nor explain why a curb/drop-down was placed in that location rather than a decline. If a slightly different design (a ramp or decline, rather than a drop-down) was feasible and would eliminate a fall risk, then arguably, SRI should have implemented a different design. It is for the trier of fact to consider that issue. (*Osborn v. Mission Ready Mix* (1990) 224 Cal. App. 3d 104, 122 ("Thus, although the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (for example, when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability, if the breach of duty was a proximate cause of any injury."); *Kaney v. Custance* (2022) 74 Cal. App. 5th 201, 215 (2022) (same); see also *Martinez v. Chippewa Enters., Inc.* (2004) 121 Cal. App. 4th 1179, 1184 ("But the obviousness of a condition does not necessarily excuse the potential duty of a landowner, not simply to warn of the condition but to rectify it. The modern and controlling law on this subject is that 'although the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability....'").)

SRI points to evidence showing that Plaintiff was carrying several items at the time of her fall, including food and drink items. (Plaintiff's Tr. at 65-66). Plaintiff testified that she was "looking at the sidewalk straight ahead" while she was walking, and was not looking down. (Id. at 66-67; 207). SRI argues that Plaintiff's own carelessness/lack of attentiveness caused her fall/injury. But Plaintiff's own negligence, if any, does not necessarily bar recovery; it merely triggers the principles of comparative negligence. (See CACI 405.) And SRI's negligence, if any, does not need to have been the sole cause of Plaintiff's injury. A defendant's conduct is a cause in fact of a plaintiff's injury if it was a *substantial factor* in bringing about the injury. (*Gordon v. Havasu Palms, Inc.* (2001) 93 Cal.App.4th 244, 252.) A substantial factor in causing harm is a factor that a reasonable person would consider to have contributed to the harm. CACI 430 (Causation-Substantial Factor). It must be more than a remote or trivial factor, but *it does not have to be the only* cause of the harm. Id. As with the issue of "breach," causation normally presents an issue of fact, and thus typically is not amenable to summary adjudication. Id. ("The issue of causation is usually a question for the jury.")

Here, regardless of whether Plaintiff was negligent, the evidence raises a triable issue as to whether SRI's actions/omissions were *also* a "substantial factor" in causing Plaintiff's injuries. CACI 430 ("It does not have to be the only cause of the harm."). The question of whether Plaintiff was the *only* negligent party is an issue for the fact finder to decide. (See *Aguilar v. Atlantic Richfield Co.*, *supra*, at 843-856 [doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party]).

For the foregoing reasons, SRI's motion for summary judgment/adjudication is denied.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-00660 ANDREW G WATTERS VS. SIDDHARTH BREJA, ET AL.

LINE 3

ANDREW G. WATTERS
SIDDHARTH BREJA

JERAMY STEPHEN STONE
PRO SE

DEFENDANT SIDDHARTH BREJA'S MOTION FOR ORDER AWARDING APPELLATE COSTS

TENTATIVE RULING:

The Court notes that the Motions for Order Awarding Appellate Costs and Motion to Enforce Appellate Mandate (the "Motions") brought by Defendant/Cross-Complainant Siddharth Breja ("Cross-Complainant"), provide that the above-entitled matter was set in Department 19. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) The motions should have been renoticed. But the error is understandable and waived.

The Court further notes that Defendant's proofs of service includes his declaration that he served the moving papers himself, which violates Code of Civil Procedure section 1013a, subdivision (1). Plaintiff does not object and has responded, so the Court finds no prejudice and that the defect has been waived. But Defendant is on notice that he cannot validly continue to serve papers himself.

Both of Defendant's Motions are GRANTED and this case is STAYED pursuant to Code of Civil Procedure section 1281.4 during the pendency of the arbitration (commencing eleven days from entry of this order). Plaintiff Andrew Watters IS ORDERED to either dismiss his claims in this action or commence formal arbitration process within ten (10) days of entry of this order.

Background

This action arises over a fee dispute. Plaintiff/Cross-Defendant Andrew G. Watters ("Cross-Defendant") is an attorney who in 2023 had represented Cross-Complainant in a dissolution action pursuant to a written contract. Cross-Complainant retained Cross-Defendant on May 1, 2023, shortly before the trial scheduled for June 6, 2023. The parties agreed that Cross-Defendant's attorney's fees would not exceed \$20,000 through the end of trial, specifying further that Cross-Complainant would pay to Cross-Defendant a \$10,000 initial retainer, and a \$10,000 trial deposit. Cross-Complainant paid \$10,000 with his American Express card, and wired \$10,000 to Cross-Defendant's trust account with Chase Bank.

Cross-Defendant alleges that Cross-Complainant exercised an inappropriate level of control over his work, including drafting his own legal briefs and sending around 150 emails and at least 100 text
